

The Goa Change of Name and Surname Rules, 1991

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State of Goa - Act

The Goa Change of Name and Surname Rules, 1991

GOA

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The Goa Change of Name and Surname Rules, 1991

Rule THE-GOA-CHANGE-OF-NAME-AND-SURNAME-RULES-1991 of 1991

Published on 7 February 1991

Commenced on 7 February 1991

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[Note: The original publication document is not available and this content could not be verified.]

The Goa Change of Name and Surname Rules, 1991

Published vide Notification No. 7/49/90/LD (Estt.), dated 7-2-1991

No. 7/49/90/LD (Estt.). - In exercise of the powers conferred by section 4 of the Goa Change of Name and Surname Act, 1990 (Act 8 of 1990), the Government of Goa hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Goa Change of Name and Surname Rules, 1991.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

'Act' means the Goa Change of Name and Surname Act, 1990 (Act 8 of 1990);

(b)

'applicant' means a person who makes the application;

(c)

'application' means an application for change of name or surname or both;

(d)

'section' means a section of the Act;

(e)

words and expressions used but not defined in these rules, shall have the same meanings as respectively assigned to them in the Act.

3.

Application.

(1)

An application in Form A alongwith a treasury receipt showing that a fee of thirty-six rupees for each change of name or surname has been paid into the local treasury under the Major Head 0070 - Other Administrative Services, Minor Head 60 - Other Services. Detailed Head 800 - Other receipts, 81 - other items, shall be made by a person who desires to change his name or surname or both and in case such person is a minor, by his guardian, to the Registrar having jurisdiction, in the area in which the applicant's birth is registered.

(2)

On receipt of the application, the Registrar shall affix the notice thereof in the notice board of his office and also publish the said notice in the Official Gazette calling for objections, if any on the application, within thirty days from the date of publication of the notice in the Official Gazette.

(3)

In case any objections are received, the Registrar shall summon the person who has filed his objections to appear before him alongwith witnesses, if any, within ten days from the date of receipt of the summons.

(4)

In case the person who has filed his objections:-

(i)

fails to appear before the Registrar within the period specified in sub-rule (3), his objections shall be rejected.

(ii)

appear before the Registrar within the period specified in sub-rule (3), the Registrar shall examine such person and witnesses if any and record their statements.

(5)

In case where the statements regarding the objections are recorded, the Registrar shall give the applicant an opportunity of making his representation against the objections and after examining the applicant and his witnesses if any, pass such order as he deems fit within sixty days from the date of receipt of the application.

(6)

In case no objections are received or if the objections are rejected under clause (i) of sub-rule (4) or if the order under sub-section (3) or sub-section (5) of section 3, is for granting the request of the applicant, the Registrar shall call for the extract under section 17 of the Registration of Births and Deaths Act, 1969 (Central Act 18 of 1969) regarding the applicant's birth registration, enter the relevant particulars and also the changed name or surname or both in his register and thereafter issue the Certificate in Form 'B'.

(6a)

[A certified copy of the Certificate in form 'B' shall be issued to any person applying for the same, on payment of a fee of Rs. 10/-]

[Inserted by (Amendment) Rules, 1996 (O. G. Series I, No. 5 dated 3-5-1996).]

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(7)

Any person aggrieved by the order of the Registrar under sub-section (3) of section 3, may within thirty days from the communication of the order, prefer an appeal to the Chief Registrar.

(8)

On receipt of the Memorandum of Appeal, the Chief Registrar shall call for the relevant papers from the Registrar concerned and after hearing the aggrieved person, pass such order as he deems fit which shall be final.

Form 'A'

(See Rule 3)

Application for change of name or surname or both

1.

Name of the applicant as entered in his/her birth certificate:

.....

2.

Father's name:

.....

3.

Mother's name:

.....

4.

Sex:

.....

5.

Date of birth:

.....

6.

Place of birth:

.....

7.

The name, surname or both of the applicant required to be changed from

.....

to

(new

name/surname/both).....(old
name/surname/both)

8.

Name of the applicant as it would appear after the name at serial No. 1 is changed:

.....

9.

The reasons for such change(to be supported by an affidavit):

.....

10.

Whether the applicant had applied earlier for change of name, surname or both:

.....

11.

If yes, whether the application was granted or not:

.....

12.

If the application was granted whether the certificate

regarding changed name has been attached:

.....

13.

If the application was rejected, the reasons therefore:

.....

14.

Name of the guardian if the applicant is a Minor:

.....

15.

Guardian's relationship with the applicant:

.....

(.....)

Signature of the applicant or of his/her guardian

Note: Birth Certificate of the applicant should be attached to the application.

Form 'B'

(See rule 3)

Certificate under sub-section (4) of section 3

This is to certify that name of has been changed from to

His original record of birth as contained in the register for Birth of Talukaof district of the State of Goa, is as under:-

Sex.....

Date of Birth.....

Registration No.

Place of Birth.....

Date of Registration.....

Name of Father.....

Permanent address of Father/mother

.....

.....

Name of Mother.....

Nationality of Father.....

Nationality of Mother.....

Name of Grandfather (father's side).....

Name of Grandmother (father's side).....

.....

Signature of Registrar

Seal

Date:

Place:

Notifications

No. 7/49/90/LD(Estt.) - In exercise of the powers conferred by clause (h) of section 2 of the Goa Change of Name and Surname Act, 1990 (Act 8 of 1990) (hereinafter referred to as the 'said Act') the Government of Goa hereby authorises the Sub-Registrars appointed under the Registration Act, 1908 (Central Act 16 of 1908) to exercise the powers and perform the duties of the Registrar under the said Act, within the local areas of their respective jurisdictions.

No. 7/49/90/LD (Estt.) - In exercise of the powers conferred by clause (a) of section 2 of the Goa Change of Name and Surname Act, 1990 (Act 8 of 1990) (hereinafter referred to as the 'said Act'), the Government of Goa hereby authorises the District Registrar, Goa-cum-Head of Registers and Notary Services, appointed under the Registration Act, 1908 (Central Act 16 of 1908) to exercise the powers and perform the duties of the Chief Registrar under the said Act, in the whole of the State of Goa.

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